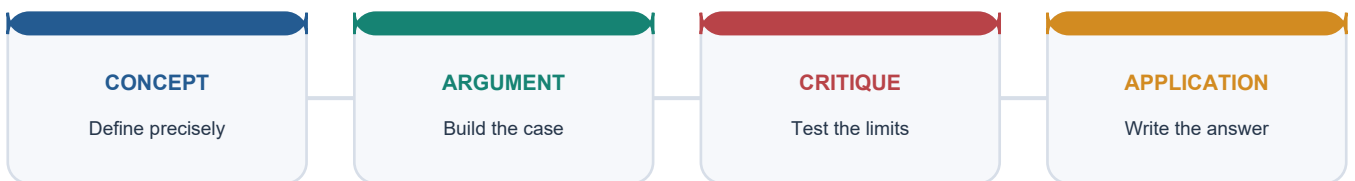


COMPLETE LEARNING SESSION

PM and Council of Ministers - Solved Practice Workbook

Solved Practice Workbook

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Workbook contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

PM and Council of Ministers - Solved Practice Workbook	3
BASIC MCQS / REMEDIATION	3
32 original MCQs	3
PYQS AND ANSWER PRACTICE	14
Audited routed PYQs	14
Six original solved Mains answers	15

PM and Council of Ministers - Solved Practice Workbook

BASIC MCQS / REMEDIATION

32 original MCQs

Answer rotation: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific Examiner trap.

MCQ 1. Article 74 inquiry bar

Which statement most accurately states Article 74(2)?

A. It bars inquiry into whether any, and if so what, ministerial advice was tendered, without immunising every resulting executive act. B. It bars every court from reviewing any action expressed in the President's name. C. It allows the President to reject advice after the Council has reconsidered it. D. It creates a Council of Ministers that need not have a Prime Minister.

Answer: A.

Option explanations:

- **A:** Correct: the advice itself is protected, while legality of the resulting action may still be tested.
- **B:** Incorrect: Article 74(2) is not a blanket exclusion of judicial review over executive action.
- **C:** Incorrect: the 44th Amendment permits one return; reiterated advice binds.
- **D:** Incorrect: Article 74 expressly requires the Prime Minister at the head of the Council.

Examiner trap 1: The closest distractor wrongly turns confidentiality of advice into immunity for the act.

MCQ 2. Hung Lok Sabha

When rival claimants assert majority support after a hung Lok Sabha election, what supplies the decisive constitutional proof?

A. A written opinion of the Election Commission B. A floor test in Lok Sabha C. The President's final private estimate D. A confirming vote in Rajya Sabha

Answer: B.

Option explanations:

- **A:** Incorrect: the Election Commission administers elections; it does not certify government confidence.
- **B:** Correct: legislative confidence must be demonstrated on the floor of the House.
- **C:** Incorrect: presidential assessment is only provisional for making an invitation.
- **D:** Incorrect: Article 75(3) makes the Council responsible to Lok Sabha, not Rajya Sabha.

Examiner trap 2: The trap is confusing the President's initial invitation with the House's final confidence verdict.

MCQ 3. Non-member Prime Minister

A person appointed Prime Minister while belonging to neither House must obtain parliamentary membership within:

A. one year B. three months C. six consecutive months D. the remaining Lok Sabha term

Answer: C.

Option explanations:

- **A:** Incorrect: Article 75(5) supplies a much shorter temporary window.
- **B:** Incorrect: three months is not the constitutional period.
- **C:** Correct: failure to enter either House within six consecutive months ends ministerial office.
- **D:** Incorrect: parliamentary responsibility cannot be postponed for an entire Lok Sabha term.

Examiner trap 3: The six-month bridge cures non-membership only; it does not cure a disqualification.

MCQ 4. Oath and secrecy

Who administers the Union minister's oaths of office and secrecy, and under what source?

A. Chief Justice of India under Article 76 B. Lok Sabha Speaker under Article 88 C. Vice-President under Article 74 D. President under Article 75(4) and the Third Schedule

Answer: D.

Option explanations:

- **A:** Incorrect: Article 76 concerns the Attorney-General, not ministerial oaths.
- **B:** Incorrect: the Speaker does not administer Union ministerial oaths.
- **C:** Incorrect: Article 74 concerns aid and advice, not the oath administrator.
- **D:** Correct: Article 75(4) and the Third Schedule govern both oaths.

Examiner trap 4: Do not confuse the constitutional oath administrator with the presiding officer of a House.

MCQ 5. Article 78(c)

Which action is an express duty of the Prime Minister under Article 78?

A. Placing before the Council, if the President requires, an individual minister's decision not considered by the Council.
B. Countersigning every order issued in the President's name. C. Obtaining Rajya Sabha approval before advising Lok Sabha dissolution. D. Sending every departmental file to the President before decision.

Answer: A.

Option explanations:

- **A:** Correct: clause (c) restores collective consideration when the President so requires.
- **B:** Incorrect: India has no universal countersignature requirement for every presidential act.
- **C:** Incorrect: Rajya Sabha does not approve dissolution advice concerning Lok Sabha.
- **D:** Incorrect: Article 78 requires information and specified communication, not universal file submission.

Examiner trap 5: Clause (c) protects collective government; it does not create a presidential veto.

MCQ 6. Article 88 participation

A Union minister who is a Rajya Sabha member may in Lok Sabha:

- A. vote only on financial business B. speak and participate but not vote merely as a minister C. neither speak nor participate D. vote on every government bill

Answer: B.

Option explanations:

- **A:** Incorrect: Article 88 gives no special Money Bill vote.
- **B:** Correct: participation extends across Houses, while voting follows membership.
- **C:** Incorrect: the Constitution expressly grants a right to speak and take part.
- **D:** Incorrect: ministerial office does not confer dual-House voting rights.

Examiner trap 6: Article 88 expands voice, not membership or voting power.

MCQ 7. Union ministry cap

Article 75(1A) calculates the maximum Union Council of Ministers as:

- A. 15 per cent of Parliament's combined membership B. 10 per cent of Lok Sabha membership C. 15 per cent of total Lok Sabha membership, including the Prime Minister D. a number fixed by presidential order

Answer: C.

Option explanations:

- **A:** Incorrect: Rajya Sabha is not included in the denominator.
- **B:** Incorrect: ten per cent is not the Union ceiling.
- **C:** Correct: the PM and all ministers together cannot exceed fifteen per cent of total Lok Sabha membership.
- **D:** Incorrect: the ceiling is constitutional, not reset by the President.

Examiner trap 7: The State minimum of twelve does not apply to the Union.

MCQ 8. Defector bar

Article 75(1B), inserted by the 91st Amendment, bars:

- A. every defeated candidate from ministerial office B. every non-member from using Article 75(5) C. every Rajya Sabha member from Cabinet rank D. a member disqualified under the specified Tenth Schedule route from ministership during the stated period

Answer: D.

Option explanations:

- **A:** Incorrect: electoral defeat alone is not the constitutional trigger.
- **B:** Incorrect: the six-month non-member rule remains available to an otherwise eligible person.
- **C:** Incorrect: Rajya Sabha members may hold any ministerial rank.
- **D:** Correct: the clause links a specified defection disqualification to a temporary ministerial bar.

Examiner trap 8: Do not merge the defector bar with the distinct six-month non-member rule.

MCQ 9. Collective responsibility

What follows most directly from Article 75(3)?

A. A carried Lok Sabha no-confidence motion requires the ministry as a whole to leave office or pursue a constitutionally available dissolution route. B. Each minister must personally attend every Cabinet meeting. C. Rajya Sabha may dismiss the ministry by a simple-majority motion. D. One minister's resignation dissolves Lok Sabha.

Answer: A.

Option explanations:

- **A:** Correct: collective responsibility makes the Council stand or fall together before Lok Sabha.
- **B:** Incorrect: collective ownership does not require universal attendance at every decision.
- **C:** Incorrect: Rajya Sabha scrutinises but is not the confidence chamber.
- **D:** Incorrect: an individual exit changes the team, not the life of Lok Sabha.

Examiner trap 9: The sanction is collective and Lok Sabha-centred, including for Rajya Sabha ministers.

MCQ 10. Individual responsibility

Which description best captures individual ministerial responsibility?

A. Every departmental error automatically requires resignation. B. A minister holds office during presidential pleasure, normally operationalised through PM-led advice and discipline. C. Parliament directly dismisses one Union minister through no-confidence. D. It is identical to criminal liability.

Answer: B.

Option explanations:

- **A:** Incorrect: resignation convention is political and fact-sensitive, not automatic.
- **B:** Correct: Article 75(2) permits individual exit without bringing down the entire Council.
- **C:** Incorrect: no-confidence is directed at the ministry's collective survival.
- **D:** Incorrect: political tenure and criminal responsibility are separate questions.

Examiner trap 10: Pleasure is not an independent personal presidential dismissal power while the PM retains confidence.

MCQ 11. Legal responsibility

What does the textbook statement that India lacks British-style universal legal responsibility mean?

A. Ministers cannot be prosecuted. B. Courts cannot review ministerial action. C. No universal ministerial countersignature is required for every presidential act, though ordinary legal accountability remains. D. Only civil servants can be liable for executive illegality.

Answer: C.

Option explanations:

- **A:** Incorrect: ministers remain subject to criminal, civil and statutory law.
- **B:** Incorrect: Article 74(2) does not erase review of resulting action.
- **C:** Correct: the comparison concerns countersignature, not immunity from law.
- **D:** Incorrect: responsibility can attach to ministers, officials and government according to the governing law.

Examiner trap 11: The phrase is narrow comparative doctrine, not a licence for impunity.

MCQ 12. Council and Cabinet

Which statement correctly distinguishes the Council of Ministers from the Cabinet?

A. The Council is a smaller subset of the Cabinet. B. Both bodies always have identical membership. C. Their membership is permanently fixed at textbook ranges. D. The Council is the wider constitutional ministry; the Cabinet is its smaller Cabinet-rank decision core.

Answer: D.

Option explanations:

- **A:** Incorrect: the subset relationship runs the other way.
- **B:** Incorrect: Ministers of State and other ranks widen the Council beyond Cabinet.
- **C:** Incorrect: actual strengths vary within the constitutional ceiling.
- **D:** Correct: the distinction is one of scope, membership and ordinary decision function.

Examiner trap 12: Article 75 responsibility belongs to the wider Council even when Cabinet takes the principal decision.

MCQ 13. Cabinet in constitutional text

The Constitution expressly defines 'Cabinet' for which purpose?

A. Article 352(3)'s written decision required for a National Emergency proclamation B. Article 280's Finance Commission C. Article 148's Comptroller and Auditor-General D. Article 54's presidential electoral college

Answer: A.

Option explanations:

- **A:** Correct: the 44th Amendment inserted the written-Cabinet-decision safeguard and explanation in Article 352.
- **B:** Incorrect: Article 280 establishes the Finance Commission without this Cabinet definition.
- **C:** Incorrect: Article 148 concerns the CAG.
- **D:** Incorrect: Article 54 defines presidential electors.

Examiner trap 13: Do not infer that Cabinet was absent from constitutional operation merely because the original text did not define it.

MCQ 14. Ministerial ranks

Which statement about ministerial ranks is correct?

A. An independent-charge Minister of State is automatically a Cabinet Minister. B. Ranks are conventional and variable; independent charge does not itself confer Cabinet rank. C. Deputy Prime Minister is a separate constitutional executive office. D. Article 75 requires a Deputy Minister rank.

Answer: B.

Option explanations:

- **A:** Incorrect: independent departmental charge and Cabinet membership are different statuses.
- **B:** Correct: the Constitution uses the general category 'Minister' and leaves rank practice flexible.
- **C:** Incorrect: Deputy PM is a political designation without separate constitutional power.
- **D:** Incorrect: no clause mandates Deputy Ministers.

Examiner trap 14: Cabinet attendance by invitation does not silently alter a minister's rank.

MCQ 15. Prime Minister's exit

Which event ends the existing PM-headed Council as a political ministry?

- A. Resignation of one Minister of State B. Prorogation of Rajya Sabha C. Resignation or death of the Prime Minister D. Referral of a bill to a committee

Answer: C.

Option explanations:

- **A:** Incorrect: the PM may replace one minister while the Council continues.
- **B:** Incorrect: prorogation affects a session, not ministerial existence.
- **C:** Correct: Article 74 requires a Council with the PM at its head.
- **D:** Incorrect: legislative scrutiny does not dissolve the ministry.

Examiner trap 15: Political termination of the ministry must be separated from temporary caretaker continuity.

MCQ 16. Allocation and Transaction Rules

Which pairing is correct?

- A. AoB fixes Cabinet Committee numbers; ToB fixes Lok Sabha seats. B. AoB tells how a file travels; ToB tells which ministry owns it. C. Both rule sets are framed under Article 309. D. AoB allocates subjects; ToB prescribes disposal, consultation and approval routes.

Answer: D.

Option explanations:

- **A:** Incorrect: neither rule performs those constitutional tasks.
- **B:** Incorrect: this reverses the two functions.
- **C:** Incorrect: the official source identifies Article 77(3), not Article 309.
- **D:** Correct: AoB supplies the address and ToB supplies the travel route.

Examiner trap 16: The easiest trap is a clean reversal of allocation and transaction.

MCQ 17. Cabinet Committees

Cabinet Committees are best described as:

- A. standing or ad hoc executive ministerial bodies operating through business-rule practice B. parliamentary committees chaired by the Speaker C. civil-service committees without ministers D. permanent constitutional bodies with fixed membership

Answer: A.

Option explanations:

- **A:** Correct: they specialise and coordinate Cabinet work within the executive.
- **B:** Incorrect: parliamentary committees belong to the legislature.
- **C:** Incorrect: a Committee of Secretaries is the civil-service mechanism.
- **D:** Incorrect: names, membership and chairs are notification-sensitive.

Examiner trap 17: The word 'committee' hides three different species: Cabinet, parliamentary and secretaries' committees.

MCQ 18. Current committee composition

For a present-tense claim about Cabinet Committee membership or chairmanship, the safest source is:

A. a decades-old textbook table B. the latest dated Cabinet Secretariat notification C. an inference from the committee's title D. a permanent rule that every committee is PM-chaired

Answer: B.

Option explanations:

- **A:** Incorrect: historical tables become stale when compositions change.
- **B:** Correct: the official dated notification controls current composition.
- **C:** Incorrect: subject matter does not determine the chair as a legal rule.
- **D:** Incorrect: no such universal chairmanship rule exists.

Examiner trap 18: Current composition is a dated fact, not a timeless constitutional proposition.

MCQ 19. Cabinet Secretariat

Which is an official function of the Cabinet Secretariat?

A. Exercising judicial review B. Electing the Prime Minister C. Administering business rules, supporting Cabinet bodies and coordinating ministries D. Replacing every minister-in-charge

Answer: C.

Option explanations:

- **A:** Incorrect: constitutional courts exercise judicial review.
- **B:** Incorrect: the President appoints the PM under Article 75(1), bounded by confidence.
- **C:** Correct: the official functions page lists secretarial assistance, coordination, records and monitoring.
- **D:** Incorrect: the Secretariat is not a super-ministry.

Examiner trap 19: Administrative centrality must not be mistaken for independent political or statutory competence.

MCQ 20. Prime Minister's Office

Which description of the PMO is most accurate?

A. A constitutional body under Article 78 B. A statutory regulator of all ministries C. The Cabinet itself under another name D. A non-constitutional staff office supporting the Prime Minister without independent legal competence

Answer: D.

Option explanations:

- **A:** Incorrect: Article 78 assigns duties to the PM, not constitutional status to the PMO.
- **B:** Incorrect: no general statute makes it a regulator of ministries.
- **C:** Incorrect: Cabinet is a ministerial decision body, not a staff office.
- **D:** Correct: its influence comes through advice, coordination and access to the PM.

Examiner trap 20: Influence over information flow does not create a separate source of legal power.

MCQ 21. Kitchen cabinet

A 'kitchen cabinet' is ordinarily:

A. an informal circle of trusted advisers that may include non-ministers B. the Cabinet Committee on Parliamentary Affairs C. the official name of the PMO D. a statutory emergency body

Answer: A.

Option explanations:

- **A:** Correct: the label describes an informal advisory circle built around trust and access.
- **B:** Incorrect: a Cabinet Committee is a formal executive ministerial mechanism.
- **C:** Incorrect: the PMO is an administrative staff office.
- **D:** Incorrect: no statute creates a general kitchen cabinet.

Examiner trap 21: Informal influence must still be translated through a competent formal authority.

MCQ 22. Groups of Ministers

Which statement about Groups of Ministers is most accurate?

A. They are permanent constitutional bodies. B. They are ad hoc ministerial coordination devices whose mandate and existence may vary. C. They are committees of civil servants chaired by the Cabinet Secretary. D. They automatically bind Parliament.

Answer: B.

Option explanations:

- **A:** Incorrect: the Constitution does not establish GoMs.
- **B:** Correct: they are created for defined cross-portfolio coordination and may be wound up.
- **C:** Incorrect: that description fits a Committee of Secretaries, not a GoM.
- **D:** Incorrect: executive coordination cannot replace legislation or parliamentary control.

Examiner trap 22: Do not convert an ad hoc coordination mechanism into a permanent tier of government.

MCQ 23. Caretaker ministry

A Union caretaker ministry is best understood as:

A. a government stripped of all legal executive authority B. a separate constitutional office created after every dissolution C. a continuing ministry conventionally expected to avoid major irreversible choices unless necessary D. a Cabinet appointed by the Election Commission

Answer: C.

Option explanations:

- **A:** Incorrect: continuity requires legal authority to remain available.
- **B:** Incorrect: the Constitution contains no separate caretaker-government chapter.
- **C:** Correct: restraint is mainly conventional and necessity-sensitive.
- **D:** Incorrect: the Election Commission administers election law and the Model Code; it does not appoint the Cabinet.

Examiner trap 23: The Model Code of Conduct and caretaker convention overlap in context but are not identical doctrines.

MCQ 24. Coalition responsibility

How does coalition government affect Article 75(3)?

A. It transfers confidence to Rajya Sabha. B. It makes each coalition party separately responsible. C. It suspends Cabinet solidarity. D. It changes bargaining and solidarity in practice but leaves collective responsibility to Lok Sabha intact.

Answer: D.

Option explanations:

- **A:** Incorrect: Lok Sabha remains the confidence chamber.
- **B:** Incorrect: the constitutional Council stands as one ministry.
- **C:** Incorrect: public solidarity may be negotiated or strained, not constitutionally suspended.
- **D:** Correct: political operation varies while the legal rule remains.

Examiner trap 24: Coalition variation is political elasticity inside a constant constitutional framework.

MCQ 25. Prime-ministerial government

The phrase 'prime-ministerial government' most defensibly means:

A. a practical concentration of personnel, agenda, party and information power around the PM within continuing Cabinet government B. a constitutional amendment replacing the Council C. personal presidential rule by the PM D. abolition of Lok Sabha confidence

Answer: A.

Option explanations:

- **A:** Correct: it is an analytical description of variable practical dominance.
- **B:** Incorrect: no amendment created a new constitutional form.
- **C:** Incorrect: the PM remains part of responsible parliamentary government.
- **D:** Incorrect: Article 75(3) continues to control survival.

Examiner trap 25: A political-science label should never be presented as if it were an Article.

MCQ 26. Dissolution advice

Which statement best describes advice to dissolve Lok Sabha?

A. The Prime Minister can dissolve Rajya Sabha as well. B. Dissolution is a formal presidential act ordinarily based on ministerial advice, with a defeated or caretaker context requiring attention to any viable alternative majority. C. Rajya Sabha must approve it. D. A government-bill defeat always compels immediate dissolution.

Answer: B.

Option explanations:

- **A:** Incorrect: Rajya Sabha is a continuing chamber.
- **B:** Correct: parliamentary convention links advice to confidence and the possibility of an alternative government.
- **C:** Incorrect: Rajya Sabha has no confirming role.
- **D:** Incorrect: not every legislative defeat is a confidence defeat.

Examiner trap 26: Do not state a rigid personal presidential power; identify the exceptional political context and its limits.

MCQ 27. Article 77 authentication

What is the best reading of authentication under Article 77(2)?

- A. It proves the President personally considered the policy. B. It removes every requirement imposed by statute. C. It gives formal protection to duly authenticated instruments while underlying competence and legality remain reviewable. D. It transfers ministerial responsibility to the authenticating officer.

Answer: C.

Option explanations:

- **A:** Incorrect: action in the President's name is institutional form.
- **B:** Incorrect: authentication cannot override substantive legal conditions.
- **C:** Correct: form and underlying legality are distinct.
- **D:** Incorrect: an official's authentication does not erase ministerial accountability.

Examiner trap 27: Formal regularity is not a substitute for lawful authority.

MCQ 28. Ambedkar resignation

Which statement is accurate about B. R. Ambedkar's departure from the Union Cabinet?

- A. He resigned in 1956 over linguistic reorganisation. B. He was removed by a parliamentary no-confidence vote. C. He resigned in 1953 over Article 356. D. He tendered his resignation in 1951 in connection with the Hindu Code Bill issue.

Answer: D.

Option explanations:

- **A:** Incorrect: the year and issue are both wrong.
- **B:** Incorrect: Parliament did not individually remove him through no-confidence.
- **C:** Incorrect: the event was neither in 1953 nor about Article 356.
- **D:** Correct: the 1951 resignation is a classic illustration of public disagreement ending in exit.

Examiner trap 28: The common factual trap is the incorrect year 1953.

MCQ 29. Attorney-General and Parliament

Which statement correctly connects the Attorney-General to the ministerial participation rule?

- A. Article 88 permits the Attorney-General, like ministers, to speak and participate in either House and specified committees, but does not by itself confer a vote. B. Article 76 makes the Attorney-General a Cabinet Minister. C. The Attorney-General may vote in both Houses. D. Only Lok Sabha may hear the Attorney-General.

Answer: A.

Option explanations:

- **A:** Correct: Article 88 covers both ministers and the Attorney-General; voting still depends on membership, which the Attorney-General does not obtain by office.
- **B:** Incorrect: Article 76 creates the Union's chief legal adviser, not a ministerial rank.
- **C:** Incorrect: the office carries no parliamentary vote.
- **D:** Incorrect: participation extends to both Houses, joint sittings and relevant committees.

Examiner trap 29: The shared participation right does not erase the constitutional difference between a minister and the Attorney-General.

MCQ 30. Union-State mirror

Which is the correctly decoded Union-State mirror?

A. Article 74 and Article 164 both govern government business. B. Article 78 imposes PM information duties to the President; Article 167 imposes corresponding CM duties to the Governor. C. Article 88 creates collective responsibility; Article 177 creates individual responsibility. D. Article 77 governs State action; Article 166 governs Union action.

Answer: B.

Option explanations:

- **A:** Incorrect: Article 74 concerns Union advice; Article 164 concerns State ministers.
- **B:** Correct: both provisions establish the chief ministerial information bridge to the formal head.
- **C:** Incorrect: Articles 88 and 177 concern legislative participation.
- **D:** Incorrect: Article 77 is Union business and Article 166 is its State mirror.

Examiner trap 30: Mirrors are easiest to test by function, not by memorising number pairs alone.

MCQ 31. Advice amendments

Which sequence is constitutionally accurate?

A. 44th Amendment first made advice binding; 42nd created reconsideration. B. 91st Amendment changed Article 74; 44th capped the ministry. C. 42nd Amendment (1976) made action according to advice explicit; 44th Amendment (1978) inserted one reconsideration with reiterated advice binding. D. Both changes were made by the 52nd Amendment.

Answer: C.

Option explanations:

- **A:** Incorrect: it reverses the amendment sequence and effects.
- **B:** Incorrect: the 91st Amendment changed Article 75, not Article 74's advice rule.
- **C:** Correct: this states the year, exact Article and distinct legal effect.
- **D:** Incorrect: the 52nd Amendment is associated with the anti-defection framework.

Examiner trap 31: Always pair amendment year with the exact clause changed and its legal effect.

MCQ 32. Minority ministry

A minority Union ministry remains constitutionally entitled to govern so long as it:

A. has the largest single party even after losing confidence B. controls Rajya Sabha C. receives presidential approval for each bill D. continues to command or obtain Lok Sabha confidence, including through issue-based or outside support

Answer: D.

Option explanations:

- **A:** Incorrect: largest-party status cannot replace a lost confidence majority.
- **B:** Incorrect: Rajya Sabha strength does not determine Article 75(3) survival.
- **C:** Incorrect: presidential assent is not a substitute for parliamentary confidence.
- **D:** Correct: support need not always take coalition form, but it must sustain the ministry in Lok Sabha.

Examiner trap 32: Minority status describes seat arithmetic, not automatic constitutional invalidity.

PYQS AND ANSWER PRACTICE

Audited routed PYQs

PYQ 1 - UPSC Prelims 2020, GS-I, Q19 - supporting State analogue

Consider the following statements:

1. According to the Constitution of India, a person who is eligible to vote can be made a Minister in a State for six months even if he/she is not a member of the Legislature of that State.
2. According to the Representation of the People Act, 1951, a person convicted of a criminal offence and sentenced to imprisonment for five years is permanently disqualified from contesting an election even after release from prison.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Route and solution: This is a State-ministry analogue. Article 164(4), not Article 75(5), supplies the State six-month window; mere voter eligibility does not exhaust qualification and disqualification requirements. Electoral disqualification after imprisonment is statutory and time-bounded, not automatically permanent. For Topic 16, retain the Union comparison: Article 75(5) permits temporary non-membership but never cures disqualification.

PYQ 2 - UPSC Prelims 2022, GS-I, Q14

Consider the following statements:

1. The Constitution of India classifies the ministers into four ranks viz. Cabinet Minister, Minister of State with Independent Charge, Minister of State and Deputy Minister.
2. The total number of ministers in the Union Government, including the Prime Minister, shall not exceed 15 percent of the total number of members in the Lok Sabha.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Route and solution: Statement 1 is constitutionally inaccurate because Article 75 does not codify a four-rank classification; conventional practice recognises Cabinet Ministers, Ministers of State and, when used, Deputy Ministers, while independent charge is a form of MoS responsibility. Statement 2 reproduces Article 75(1A): the Prime Minister and all Union ministers together cannot exceed fifteen per cent of total Lok Sabha membership.

PYQ 3 - UPSC GS-II 2024, Q3 - 10 marks, 150 words

"The growth of cabinet system has practically resulted in the marginalisation of the parliamentary supremacy." Elucidate.

Demand: Explain the mechanism of practical marginalisation while avoiding the false claim that Parliament is legally sovereign in India.

Model answer:

Article 75(3) makes the Cabinet collectively responsible to Lok Sabha, yet executive-legislative fusion can allow a disciplined government majority to dominate Parliament's daily work. Party whip and the Tenth Schedule reduce independent voting; executive control of House business and time, guillotining of demands for grants, delegated legislation, ordinances and contested Money Bill routes can compress prior deliberation. A centralised PMO may further shift authority from Parliament to Cabinet and from Cabinet to the Prime Minister.

These mechanisms can turn Parliament from agenda-setter into reactor, making legislation and supply resemble ratification. However, India follows constitutional supremacy, not British parliamentary sovereignty. No-confidence, questions, departmental committees, PAC-CAG scrutiny, bicameralism, elections and judicial review remain real correctives. Cabinet growth has therefore marginalised Parliament's effective deliberative and control functions, not transferred legal sovereignty. More sittings, routine committee scrutiny and a narrower survival-focused whip would restore balance.

Six original solved Mains answers

Original Q1 - 10 marks, 150 words

Question: The President's role in appointing a Prime Minister in a hung Lok Sabha is real but not arbitrary. Examine.

Model answer:

Article 75(1) authorises the President to appoint the Prime Minister but gives no detailed invitation code. With a clear majority, convention leaves virtually no choice: the recognised majority leader must be called. In a hung House, the President may assess public alliance claims, letters of support and the likelihood of stable confidence.

That judgment is procedural, not a power to choose a preferred government. The Charan Singh episode of 1979 and Atal Bihari Vajpayee's 1996 ministry show that appointment begins the process; a prompt Lok Sabha floor test completes it. The floor-test principle in S. R. Bommai, though developed in the State context, supports legislative rather than subjective proof.

The President should also consider whether a viable alternative exists before accepting dissolution advice. Thus discretion is bounded by neutrality, objective material, reasonable speed and House confidence; it cannot create an independent presidential programme.

Original Q2 - 10 marks, 150 words

Question: Explain how Article 78 makes the Prime Minister the constitutional bridge between the Council of Ministers and the President.

Model answer:

Article 78 converts consultation between the formal and political executives into a constitutional duty. First, the Prime Minister must communicate Council decisions on Union administration and legislative proposals. Second, information sought by the President on those matters must be furnished. Third, if an individual minister has decided a matter without Council consideration, the President may require the Prime Minister to place it before the Council.

These duties let the President be informed, consulted and cautionary while protecting collective government. Clause (c) is especially important because it prevents a departmental decision from escaping Cabinet-level ownership when the constitutional head flags it.

Article 78 must, however, be read with Article 74. Information and reconsideration do not create a rival executive: after the Council collectively settles its position, binding ministerial advice governs. The bridge therefore improves deliberation without displacing democratic responsibility.

Original Q3 - 15 marks, 250 words

Question: Distinguish collective, individual and legal responsibility of Union ministers. Why does the distinction matter?

Model answer:

Ministerial responsibility has three different constitutional meanings.

Collective responsibility under Article 75(3) binds the entire Council to Lok Sabha. It includes confidence, public solidarity and unified accountability. A carried no-confidence motion therefore removes the whole ministry, including Rajya Sabha ministers. B. R. Ambedkar's 1951 resignation over the Hindu Code Bill issue illustrates the solidarity principle: a fundamental public disagreement is ordinarily resolved by acceptance or exit.

Individual responsibility arises from Article 75(2), under which ministers hold office during the President's pleasure. In practice, while the Prime Minister commands confidence, that pleasure is enforced through PM-led advice. One minister can therefore be asked to resign or be removed without ending the Council. Parliamentary questions, censure and committee findings may create political pressure, but Parliament does not ordinarily dismiss one minister through a standalone no-confidence vote.

The statement that India lacks British-style legal responsibility is narrower. No universal ministerial countersignature is required for every presidential act; Article 77 supplies the form and authentication rules. It does not immunise ministers from criminal, civil, anti-corruption, statutory or constitutional law.

The distinction matters because it matches sanction to failure: government-wide loss of confidence, individual personnel discipline, and ordinary legal liability are separate accountability routes. Conflating them either exaggerates automatic resignation or understates legal control.

Original Q4 - 15 marks, 250 words

Question: Evaluate the contribution of Cabinet Committees and the Cabinet Secretariat to effective collective government.

Model answer:

Cabinet Committees and the Cabinet Secretariat solve different coordination problems within collective government.

Cabinet Committees are standing or ad hoc ministerial groups constituted through executive business practice. They specialise recurring fields, reconcile portfolio interests and reduce the full Cabinet's workload. Their flexibility is useful, but their number, names, membership and chairs are notification-sensitive; the official composition dated 27 July 2026 cannot be converted into a permanent constitutional list.

The Cabinet Secretariat supplies the procedural infrastructure. Its official functions include administering the 1961 Allocation and Transaction of Business Rules, convening meetings on the Prime Minister's orders, circulating agenda papers, recording discussions, preserving Cabinet papers, monitoring implementation and resolving inter-ministerial differences through coordination mechanisms. It also supports major-crisis coordination.

Together, committees deepen specialised deliberation while the Secretariat preserves routing, records and follow-up. The institutional gain is speed with traceability.

However, neither mechanism may become a substitute for the minister-in-charge, statutory competence, full Cabinet responsibility or parliamentary accountability. Secretive committee proliferation can fragment ownership, while an over-central Secretariat would become a super-ministry. Their legitimacy therefore depends on clear mandates, proper records, periodic review and continued Article 75(3) responsibility.

Original Q5 - 20 marks, 250 words

Question: India has Cabinet government in constitutional form but often prime-ministerial government in political operation. Critically examine.

Model answer:

The Constitution establishes Cabinet government: Article 74 creates a Prime-Minister-headed Council, Article 75(3) makes it collectively responsible to Lok Sabha, and Article 77 routes executive business. Yet practical power may concentrate around the Prime Minister.

Personnel control is the first mechanism. Other ministers are appointed on the PM's advice; portfolios, reshuffles and exits are PM-led. Agenda control follows through Cabinet chairmanship, Cabinet Committees and the Article 78 information channel to the President. Party leadership, electoral personalisation, dissolution advice and a strong PMO can further centralise information and monitoring. Under a cohesive majority, the Cabinet may become ratificatory and Parliament reactive.

Named evidence supports, but also limits, the thesis. Shamsher Singh locates formal executive action within responsible ministerial government; it does not constitutionalise personal PM rule. Article 75(3), no-confidence, Cabinet colleagues, coalition partners, Rajya Sabha, federal governments, courts, audit bodies and elections remain counterweights. Coalition periods often convert the PM from commander into broker, while implementation complexity preserves ministerial and bureaucratic centres.

Therefore 'prime-ministerial government' is a variable political tendency, not a new legal form. Strong coordination can improve coherence and crisis response; it becomes constitutionally problematic when Cabinet deliberation, departmental competence, records and parliamentary scrutiny lose substance. The proper reform is stronger traceability, committee scrutiny and PMO subsidiarity-not weakening the coordinating office itself.

Original Q6 - 20 marks, 250 words

Question: Analyse the constitutional issues raised by minority, coalition and caretaker Union governments, including confidence and dissolution advice.

Model answer:

Minority, coalition and caretaker governments operate under the same constitutional skeleton but different political constraints.

Article 75(3) is constant: every Council must retain Lok Sabha confidence. A coalition secures that confidence through allied parties and negotiated programmes; a minority ministry may rely on outside or issue-based support. These arrangements can broaden consultation and federal voice, but they may also create veto points, unstable solidarity and blurred credit or blame. Collective responsibility remains legally undivided despite political bargaining.

Government formation becomes sensitive when no claimant has a clear majority. Article 75(1) permits presidential appointment, but objective support and a prompt floor test must replace private arithmetic. The Charan Singh and 1996 Vajpayee episodes distinguish an invitation from proved confidence.

After resignation, defeat or dissolution, Article 74 and U. N. R. Rao's continuity logic prevent an executive vacuum. The outgoing ministry may function as caretaker. Restraint on major irreversible appointments or policies is principally convention, not a separate constitutional government, and necessity may justify urgent action.

Dissolution is a formal presidential act ordinarily based on ministerial advice. Where a defeated or caretaker Prime Minister advises dissolution, the constitutional question is whether another viable Lok Sabha majority can be formed; the President must not invent one, but need not ignore objective evidence of it.

Thus political arithmetic changes bargaining intensity, while confidence, neutrality, continuity and accountable formal decision routes remain the controlling principles.